

25STCV24485 25STCV24485

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-08-21

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MOTION FOR

JUDGMENT ON THE PLEADINGS

The Court tenders the following

tentative decision in the matter Altina Chu, et al. v. American Honda Motor Co., Inc., Los Angeles County Superior Court case number 25STCV24485, set for hearing on August 21, 2026. This matter involves warranty related causes of action under the Song-Beverly Act with regards to a motor vehicle. American Honda Motor Co., Inc. (Defendant) moves for judgment on the pleadings as to all five causes of action contained within Altina and Jason Chu's (collectively, Plaintiffs) complaint. Defendant's motion is granted. Plaintiffs are granted 20 days' leave to amend.

A.

Legal Standard

A motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. (Code Civ. Proc., § 438, subd. (f).) A motion by a defendant may be made on the grounds that the "complaint does not state facts sufficient to constitute a cause of action against that defendant." (Id., § 438, subd. (c)(1)(B)(ii).) A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.)

Like a general demurrer, "ordinarily, a [motion for judgment on the pleadings] does not lie as to a portion of a cause of action, and if any part

of a cause of action is properly pleaded, the [motion] will be overruled.” (Fire Insurance Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.) In considering a motion for judgment on the pleadings, courts consider whether properly pled factual allegations — assumed to be true and liberally construed — are sufficient to constitute a cause of action. (Stone Street Capital, LLC v. Cal. State Lottery Commission (2008) 165 Cal.App.4th 109, 116.) Courts may also consider facts subject to judicial notice. (Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, 759.)

B.

Discussion

Plaintiffs bring the following

causes of action: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of subdivision (b); (3) violation of subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement via concealment. Defendant moves for judgment on the pleadings as to all causes of action. (Code Civ. Proc., § 439.) Specifically, Defendant argues that all Plaintiffs’ causes of action are inadequately pled and time-barred. The Court will address each argument in turn.

Plaintiffs’ Song-Beverly claims

fail because the subject vehicle does not qualify under the statute.

First, Defendant argues that

Plaintiffs’ first through fourth causes of action under the Song-Beverly Act fail because Plaintiffs’ vehicle does not qualify for its protections. The Act’s refund-or-replace remedy only applies to new motor vehicles. (Civ. Code, § 1793.2, subd. (d)(2).) And “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2)’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196 (Rodriguez).) Here, Plaintiffs allege that they purchased the subject vehicle, a used 2017 Honda Accord, on June 25, 2020. (Compl. ¶ 6.) The vehicle was Certified Pre-Owned and came with a warranty. (Id. ¶¶ 6–7.) However, this does not constitute a new car warranty. Indeed, Plaintiffs allege the existence of a Certified Pre-Owned warranty contract, with “pre-owned” indicating that the vehicle was not in fact new. (Ibid.) Thus, Plaintiffs have not shown the existence of a new car warranty issued with the sale upon which their

Song-Beverly claims could attach under Rodriguez.

Plaintiffs' additional argument

that Civil Code section 1795.5 permits their claim fails, as that provision only extends the Song-Beverly obligations to a "distributor or retail seller." (Civ. Code, § 1795.5, subd. (a).) And Plaintiffs have not pled sufficient facts demonstrating that Defendant "stepped into the role of a retailer," as would provide the basis for liability under *Kiluk v. Mercedes-Benz* (2019) 43 Cal.App.5th 334, 340. Indeed, Plaintiffs do not even allege from whom they purchased the subject vehicle. Accordingly, Defendant's motion is granted with respect to Plaintiffs' first through fourth causes of action.

Plaintiffs' fraud cause of

action is barred by the statute of limitations.

Defendant argues that Plaintiffs'

cause of action for fraudulent inducement via concealment is barred by the relevant statute of limitations. Actions for fraud must be brought within three years of the "discovery, by the aggrieved party, of the facts constituting the fraud." (Code Civ. Proc., § 338, subd. (d).) In a fraudulent inducement case, a plaintiff discovers the facts constituting fraud when they learn that a provision of the contract was fraudulent. Here, Plaintiffs allege that they discovered defects in their vehicle within the express warranty period, and some of the relevant warranties cover a period of up to seven years. (Compl. ¶¶ 7, 11, Ex. A.) Thus, Plaintiffs allege to have discovered facts constituting fraud between their purchase of the subject vehicle on June 25, 2020, and the filing of the present case on August 20, 2025. Thus, a statute of limitations defense appears on the face of the complaint: Plaintiffs' pleading is ambiguous and leaves open the possibility that they discovered the alleged fraud as early as June 25, 2020, which would have required them to bring their fraud claim by August 13, 2023. Thus, the claim is barred by the three-year statute of limitations. Accordingly, Defendant's motion for judgment on the pleadings is granted as to Plaintiffs' fifth cause of action as well.

C.

Conclusion

The Court grants

Defendant's motion for judgment on the pleadings. Plaintiffs are granted 20 days' leave to amend.